

# MEASURES

PASSED BY THE NATIONAL ASSEMBLY OF THE  
CHURCH OF ENGLAND WHICH RECEIVED  
THE ROYAL ASSENT DURING THE  
YEAR 1929.

19 & 20 GEO. 5.

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## No. 1.

A MEASURE passed by the National Assembly  
of the Church of England.

To provide for the better care of Parochial  
Registers and other Records in Ecclesiastical  
custody, and the establishment of Diocesan  
Record Offices. [10th May 1929.]

1.—(1) The bishop of every diocese shall have Care of  
parochial  
registers.  
power—

(i) to direct that register books of baptisms, marriages and burials in the power and custody of any minister of the diocese shall be kept in a chest or safe, which in respect of—

(a) the material of which it is constructed,

(b) its holding capacity, and

(c) the security it affords against damage by fire, damp, or otherwise, and against any wrongful interference with the register books,

shall conform with the requirements of the bishop;

(ii) to direct that any chest or safe in which such register books are kept shall from time to time, as occasion may require, be repainted or repaired;

(iii) to direct that any such register books shall from time to time, as occasion may require, be rebound or repaired; and

(iv) from time to time to issue such general directions as to the safe keeping and care of such register books as he may think expedient;

and any directions given by a bishop under this section shall be binding on all persons concerned, either as owners or as custodians of such register books.

(2) Section five of the Parochial Registers Act, 1812, shall have effect subject to the provisions of this Measure, and the expense of complying with any directions given under this section shall be met by the parochial church council concerned out of any monies in the hands of such council either specially collected for the purpose or otherwise available.

Diocesan  
record  
office.

**2.**—(1) The bishop of every diocese shall have power to establish a diocesan record office either at the same place as that at which the diocesan registry is situate or at some other place selected by him, and shall also have power to make such regulations and to appoint such officers as shall be necessary for the conduct of the business of such diocesan record office.

(2) The bishop shall, in selecting the place where a diocesan record office is to be established under this section, have regard to the question whether it affords adequate security against damage by fire, damp, or otherwise.

(3) Any register books of baptisms, marriages and burials deposited in a diocesan record office pursuant to the provisions of this Measure shall be kept by and remain in the power and custody of the chief officer of such office.

Deposit of  
parochial  
registers and  
parochial  
records in  
diocesan  
record  
office.

**3.** After a diocesan record office has been established in any diocese, any minister in such diocese may, subject to the provisions of this Measure, with the consent of the bishop and the parochial church council, deposit in such diocesan record office—

(i) any register books of baptisms, marriages or burials which are in his power and custody, not being books in actual use for the purpose of making entries therein; or

- (ii) any deeds or documents of value as historical records or as evidence of legal rights which are in his custody or in that of the churchwardens or of the parochial church council, or in the joint custody of any of them.

4.—(1) After a diocesan record office has been established in any diocese, the bishop shall have power from time to time to cause the register books of baptisms, marriages and burials in the power and custody of any minister in such diocese to be inspected and reported on by some person authorised by him.

Orders for deposit of parochial registers and parochial records may be made in certain cases.

(2) If it shall appear to the bishop from a report made to him under this section that any register books of baptisms, marriages and burials in the power and custody of any minister in his diocese are exposed to danger of loss or damage or that any directions given by him in respect thereof under the powers conferred on him by this Measure have not been complied with, the bishop shall send a copy of such report to such minister, and shall consider any representations made to him by such minister within a period of fourteen days from the sending of such report.

(3) After the expiration of the aforesaid period the bishop shall, subject to the provisions of this Measure, have power to order that the register books of baptisms, marriages and burials in the power and custody of such minister, not being books in actual use for the purpose of making entries therein, or such of them as the bishop shall specify, shall be deposited in the diocesan record office—

- (i) within seven days from the date of the order, if he shall be of opinion that the matter is urgent and that circumstances so require; or
- (ii) within a period to be specified in the order, unless within that period he shall have been satisfied that adequate steps have been taken to remove the danger or to comply with the directions as the case may be.

(4) The foregoing provisions of this section shall apply with the necessary modifications to deeds and documents of value as historical records or as evidence of legal rights whether in the custody of a minister or in

that of churchwardens or of a parochial church council, or in the joint custody of any of them.

Certain registers and documents not to be deposited in diocesan record offices.

5. Nothing contained in this Measure shall authorise the deposit in a diocesan record office of—

- (i) any duplicate register book of marriages which, when filled, is under the provisions of section thirty-three of the Births and Deaths Registration Act, 1836, to be delivered to a superintendent registrar;
- (ii) any manorial document as defined in the Second Schedule to the Law of Property (Amendment) Act, 1924; or
- (iii) any document deposited in a parish under the Tithe Acts, 1836 to 1925, or under any local or personal Act by virtue of which any corn rents, rentcharges, or money payments, are payable in lieu of tithes.

Return of parochial registers and parochial records.

6.—(1) A bishop shall have power to order that any register books of baptisms, marriages or burials, or any deeds and documents, which have been deposited in the diocesan record office of his diocese, shall be returned to and placed in the power and custody of the minister or other persons who would have been entitled to the power and custody thereof if the same had not been deposited in a diocesan record office.

(2) In any case where—

- (i) an application is made to a bishop for the return of any register books or of any deeds or documents under the provisions of this section by such minister or other persons as aforesaid, and
- (ii) the bishop is satisfied that any directions which he may give with regard to such register books or to such deeds and documents will, upon and after their return, be duly complied with,

the bishop shall exercise in respect of such register books or of such deeds and documents the power conferred on him by this section.

(3) The powers conferred by this Measure shall continue to be exerciseable in respect of register books,

and of deeds and documents, returned under the provisions of this section.

7. Any register books, deeds or documents deposited in the diocesan record office of a diocese, which by reason of the foundation of a new diocese or of any alteration in the area of any diocese does not include the area to which such register books, deeds or documents belong, shall be transferred to the diocesan record office of the diocese which includes such area, or if a diocesan record office has not been established in such diocese, and pending its establishment, to the custody of the diocesan registrar.

Transfers  
between  
diocesan  
record  
offices.

8. Every chief officer of a diocesan record office and every diocesan registrar who under this Measure has in his custody any register books of marriages solemnised after the passing of the Births and Deaths Registration Act, 1836, shall—

Special pro-  
visions as to  
marriage  
registers.

- (i) furnish the Registrar-General with particulars of such register books; and
- (ii) in any case where any of such register books is required for the purpose of correcting any erroneous entry therein under the provisions of the said Act or any amendment thereof, deliver the same to the minister concerned and permit him to retain the same for such period as shall be requisite for the said purpose.

9. The bishop shall have power upon the application of any person or body of persons desiring, at his or their own cost, to print or otherwise reproduce the whole or any part of any register book of baptisms, marriages or burials in the power and custody of any minister in his diocese, or any deed or document which admits of being deposited in a diocesan record office under the foregoing provisions of this Measure, to authorise the temporary deposit of such register book, deed or document in the diocesan record office, or pending the establishment of such office with the diocesan registrar, so as to be available for printing or other reproduction upon such terms as to the costs and expenses incurred being borne by the person or body of persons making the application as the bishop may think proper.

Arrange-  
ments for  
printing  
parochial  
registers and  
parochial  
records.

Orders may be enforced by application to the county court.

**10.**—(1) If a minister or any other person neglects or refuses to comply with any order made by a bishop under this Measure for the deposit of any register books or of any deeds or documents in the diocesan record office, the bishop may apply to the county court of the district in which such register books or such deeds or documents are situate for an order for the delivery thereof, and the court, if satisfied that the procedure prescribed by this Measure in relation thereto has been duly followed, may make an order accordingly.

(2) In any case where any register books of baptisms, marriages or burials which were originally in the power and custody of any minister or of any minister and churchwardens in the diocese of any bishop are in the possession of any other person, whether within the diocese or elsewhere, the bishop may apply to the county court of the district where such register books are situate, and the court, if satisfied that the person in whose possession they are has no title to or right to the possession of them, may make an order for the delivery of such register books to the bishop for deposit in the diocesan record office or with the diocesan registrar, or for return to the minister as the bishop shall think fit.

(3) For removing doubts it is hereby declared that subject to the provisions of this Measure the title to or right to the possession of register books of baptisms, marriages or burials in the lawful power and custody of a minister or of a minister and churchwardens is incapable of assignment whether for value or otherwise.

Searches of and certificates of entries in deposited parochial registers.

**11.**—(1) The existing law relating to searches of register books of baptisms, marriages and burials, certified copies of or extracts from the entries therein and fees payable for searches and certificates respectively shall continue to apply to any register books of baptisms, marriages and burials deposited under this Measure in a diocesan record office or with a diocesan registrar, and so that all rights and duties conferred or imposed on ministers by such existing law shall in respect of the register books so deposited be transferred to and performed by the chief officer of such office or the diocesan registrar as the case may be.

(2) The said fees shall—

(i) in the case of register books deposited in a diocesan record office, be paid to the chief

officer of such office and applied by him in such manner as shall be laid down by any regulations made by the bishop under this Measure for the conduct of the business of such office; and

- (ii) in the case of register books deposited with a diocesan registrar, be paid to such registrar.

(3) Provided that—

- (i) in any case where any register books have been deposited in a diocesan record office or with a diocesan registrar by a minister or upon the application of a person or body desiring to print or otherwise reproduce the same, one-half of the said fees shall be accounted for and paid to the minister who would have received the said fees if such register books had not been deposited; and
- (ii) subject to the rights of any minister under the foregoing provisions of this section, the said regulations may provide that any register books deposited in a diocesan record office may be searched for purposes of historical research without payment of any fee.

**12.** The bishop of a diocese shall have power, where circumstances so require, to establish more than one diocesan record office under this Measure, and to decide any question which may arise as to the office in which any register books or any deeds and documents shall be deposited under this Measure, and any other question which may arise by reason of more than one office having been established.

Power to establish several diocesan record offices.

**13.** In this Measure,

the expression “minister” means every rector, vicar, curate or other officiating minister having any register books of baptisms, marriages or burials in his power and custody, but does not include a chaplain appointed by a body maintaining a cemetery under statutory powers;

Interpretation.

the expression “parish” includes any area for which a Parochial Church Council is elected.

Short title. **14.** This Measure may be cited as the Parochial Registers and Records Measure, 1929.

Extent. **15.** This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man.

A MEASURE passed by the National Assembly  
of the Church of England.

To amend the Rules for the Representation of  
the Laity contained in the Schedule to the  
Constitution. [10th May 1929.]

**Substitution of new rules for the representation of the laity.** 1.—(1) From and after the passing of this Measure the Rules for the Representation of the Laity contained in the Schedule to the Constitution, as amended by the Representation of the Laity (Amendment) Measure, 1922, shall cease to have effect, and the Rules for the Representation of the Laity contained in the Schedule to this Measure shall be substituted therefor.

(2) Provided that nothing contained in this Measure shall affect anything duly done or suffered or any right or obligation acquired or incurred under the said first mentioned Rules.

Repeal.           **2. The Representation of the Laity (Amendment) Measure, 1922, is hereby repealed.**

**3.—(1)** In the Church of England Assembly (Powers) Act, 1919, and the Parochial Church Councils (Powers) Measure, 1921, the expression “the Constitution” shall include the Constitution as varied by this Measure.

Geo. 5,  
No. 1.

(2) In section eight of the Parochial Church Councils (Powers) Measure, 1921, the words "Subject and in addition to the provisions of section III, paragraph 4, of the Schedule to the Constitution " are hereby repealed.

Short title      **4. This Measure may be cited as the “Representation of the Laity Measure, 1929.”**